



File No.: EXP202301378

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Erasure against the GENERAL DIRECTORATE OF POLICE (hereinafter, the respondent) without, according to the claimant, receiving the legally established response to their request.

Through four entry registration requests dated August 1, 2022, and August 31, 2022, the claimant requested the erasure of their police records held in the PERPOL file.

With the response received from the respondent, the Agency reached the following conclusion:

“...Once the reasons presented by the respondent, which are in the file, were analyzed, it has been established that there are no reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for the Protection of Data. For this reason, in accordance with the provisions of Article 65 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data AGREES not to admit the claim for processing...”

The claimant, disagreeing with the inadmissibility, filed a motion for reconsideration which was upheld and led to the current claim.

In the resolution of this motion, it is stated:

“...In the motion for reconsideration, it is alleged that two requests for erasure were submitted on August 1, 2022, and three requests for erasure were submitted on August 31, 2022. Each of the five requests seeks the erasure of different police records. Only one of the requests submitted on August 1, 2022, has been responded to, leaving the remaining four unanswered (...). In this case, after receiving the motion for reconsideration, and during the hearing process granted, the respondent has stated that the documentation has been re-evaluated and they have verified that the appellant currently meets the relevant requirements to erase from the police interest persons file “PERPOL” the requested data, and therefore they have decided to erase them. However, it is noted that they have not informed the interested party in writing about the status of all the requests made, so the motion filed should be upheld.

SECOND: In light of the events, the upholding of the motion granted the respondent a hearing process, to submit any allegations they deemed appropriate within ten working days. The respondent certifies in the allegations presented that the right has been attended to.

THIRD: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any allegations they consider appropriate. The claimant confirms that the right has been attended to.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

Finally, Article 52 “Applicable regime to procedures processed before data protection authorities” of Law 7/2021 establishes that:

“1. In the event that the interested parties consider that the processing of personal data has infringed the provisions of this Organic Law or that their request to exercise the rights recognized in Articles 21, 22, and 23 has not been attended to, they shall have the right to file a complaint with the data protection authority.

2. Such complaints shall be processed by the competent data protection authority in accordance with the procedure established in Title VIII of Organic Law 3/2018, of December 5, and, where applicable, by the legislation of the Autonomous Communities that is applicable. The general rules on administrative procedures and the legal regime of the public sector shall apply in a subsidiary manner.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it.

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in its Article 57, among them, the obligation to enforce the Regulation and promote awareness among the controllers and processors regarding their obligations, as well as to address the complaints submitted by a data subject and investigate, in a timely manner, the reasons for such complaints. Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects regarding the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

Conclusion

In the case analyzed here, the claiming party exercised their right of Erasure, and after the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response, as the requested access was not provided.

In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has passed.

In this regard, it should be clarified that the response that corresponds to be made cannot be

expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present claim on formal grounds due to the response being issued late, without requiring additional actions by the data controller to issue a new certification regarding the exercise of the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the claim made by A.A.A. against the GENERAL DIRECTORATE OF POLICE. However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to the GENERAL DIRECTORATE OF POLICE.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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